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MP and president, AIMIM

"The 1991 Act is the law but lower courts are entertaining such pleas when they should not have done so.... If Gyanvapi, Mathura and other issues are allowed to fester, then young Muslims will become permanently disenchanted with the constitutional process"

"Whatever is happening is with the support of the Sangh Parivar and the government. How is it that a survey commissioner's report is made available to a judge without hearing the Muslim side? Or that the report is leaked to the media? It's being done to say this is not a masjid"

"As regards the Mathura Idgah, there has been a written agreement between Muslims and Hindus 54 years ago. Now you say it is null and void and those Hindus did not have the locus standi to reach an agreement. How is that possible? Now, Khwaja Ajmeri's dargah is being questioned"

–as told to ***Amarnath K. Menon***

NEW DELHI

QUTUB MINAR



TOWERING DISPUTE

THE CONTROVERSY

On May 10, Hindutva groups such as Mahakal Manav Sewa descended on the Qutub Minar, demanding that the iconic monument be renamed Vishnu Stambh. Former ASI regional director Dharamveer Sharma reiterated the claim, saying the Qutub Minar was a "sun tower" built by Chandragupta Vikramaditya circa 5th century.

Earlier, on April 7, National Monuments Authority chairman and BJP leader Tarun Vijay claimed that the Ganesha idols placed "disrespectfully" in the Qutub Minar complex be either moved to the National Museum or installed "respectfully".

Meanwhile, a Delhi district court has been hearing a petition seeking restoration of Hindu and Jain deities, and the right to worship within the Qutub Minar complex. The petitioner has claimed that 27 temples in the complex were partly demolished by Qutubuddin Aibak and the material reused to build on Mughal emperor Aurangzeb's orders. The literature suggests it was at this stage called the Adi Vishweshwara temple. The mosque carries visible architectural marks of a temple: a classic case for the Hindutva argument, indeed much clearer than that of Ayodhya. But the law had capped it at that. In October 1997, the civil court turned down the original suit, saying all such appeals stood abated with the Places of Worship Act. The district judge, hearing a revision petition filed in 1998, ruled that the civil court deal with the matter afresh "only after taking evidence of parties". The Anjuman Intezamia Masjid management challenged this before the Allahabad High Court, which stayed proceedings, and the suit went into legal deep freeze.

The case came back to life in December 2019, with a petition seeking a "comprehensive" archaeological inspection of the Gyanvapi complex. On April 8, 2021, Civil Judge (Senior Division) Ashutosh Tiwari complied and ordered an ASI (Archaeological Survey of India) survey. However, the high court